



BUILDINGS 2026-010 BULLETIN ZONING

ISSUANCE DATE
June 11, 2026



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Code & Zoning Interpretation

PURPOSE: This Bulletin clarifies how to calculate floor area ratio (FAR) for mixed-use buildings that are UAP developments (Universal Affordability Preference developments).

SUBJECT(S): UAP development (Universal Affordability Preference development); ZR 23-22; ZR 24-161; ZR 27-111; ZR 35-31

RELATED CODE SECTIONS & RESOURCES: ZR 23-22, ZR 24-161, ZR 27-111, ZR 35-31

I. BACKGROUND

As part of the City of Yes for Housing Opportunity zoning text amendments, UAP development (Universal Affordability Preference development) was introduced as a new affordable housing option, effective on December 5, 2024. The provisions allow a higher floor area ratio (FAR) if a project includes UAP development. This Bulletin clarifies how to calculate FAR for mixed-use buildings containing UAP. For UAP developments where the maximum permitted FAR for qualifying affordable housing is the highest among the different uses on a zoning lot, the overall maximum FAR is the standard residential maximum floor area plus the floor area of the affordable housing actually provided.

ZR 23-20 states in pertinent part:

For zoning lots with buildings containing multiple uses or multiple buildings with different uses, inclusive of residences subject to different floor area ratios, the maximum floor area ratio for each use shall be as set forth in the applicable provisions of this Section, inclusive, or as provided in the respective floor area provisions of another Chapter of this Resolution. **The total of all such floor area ratios shall not exceed the greatest floor area ratio** permitted for any such use on the zoning lot.

ZR 24-161 states in pertinent part:

the maximum floor area ratio permitted for a community facility use shall be as set forth in Section 24-11, inclusive, and the maximum floor area ratio permitted for a residential use shall be as set forth in Article II, Chapter 3, provided **the total of all such floor area ratios does not exceed the greatest floor area ratio** permitted for any such use on the zoning lot.

ZR 35-31 states in pertinent part:

The maximum floor area ratio permitted for a commercial or community facility use shall be as set forth in Article III, Chapter 3, and the maximum floor area ratio permitted for a residential use shall be as set forth in Article II, Chapter 3, except as set forth in Section 35-30 (*Applicability of Floor Area and Open Space Regulations*), inclusive. **The total of all such floor area ratios shall not exceed the greatest floor area ratio** permitted for any such use on the zoning lot, except where explicitly stated otherwise.

Therefore, under ZR 23-20, ZR 24-161 and ZR 35-31, no combination of permissible uses on a zoning lot can lead to a total floor area ratio greater than the largest floor area ratio allowed for any single use.

II. SPECIFIC ISSUES

Floor area regulations for R6 through R12 districts are provided in ZR 23-22. This section sets forth two sets of FARs, one for zoning lots containing standard residences and one for zoning lots containing qualifying affordable housing or qualifying senior housing.

The definition of qualifying affordable housing in ZR 12-10 is in pertinent part:

Qualifying affordable housing shall include any of the following:

- a) *MIH developments* in Mandatory Inclusionary Housing areas
- b) *UAP developments*; **or**
- c) *buildings subject* to an affordable housing regulatory agreement.

Defined terms in this definition shall include those in Section 27-111 (General definitions).

The definition of UAP developments in ZR 27-111 states in pertinent part (with underline added for emphasis):

The **residential floor area ratio** in a *UAP development* may exceed that for standard residences set forth in Section 23-22 (Floor Area Regulations for R6 Through R12 Districts) **only by the amount of affordable housing provided [...]**.

III. INTERPRETATION

Pursuant to ZR 24-161 and ZR 35-31, in cases where the maximum permitted residential FAR is the highest among different permitted FARs for various uses, the maximum total FAR for all uses on the site is governed by the residential FAR. Because the residential FAR acts as a cap on the building's total FAR, the general rule is that any non-residential floor area reduces the amount of residential floor area available. The standard residential FAR is limited in accordance with the table in ZR 23-22. ZR 23-22 provides a greater FAR for zoning lots containing Qualifying Affordable Housing, which is defined in ZR 12-10 as including UAP developments. Thus, a zoning lot's maximum residential FAR may be increased up to the specified limit by including UAP developments or other qualifying affordable housing. However, pursuant to ZR 27-111, in the definition of UAP development, any additional residential floor area (beyond standard residences) may be made available only for affordable housing. Therefore, in cases where the maximum permitted residential FAR is the highest among different permitted FARs for various uses, the overall total maximum FAR for zoning lots containing UAP developments can only be achieved by allocating the additional floor area beyond that permitted for standard residences exclusively to affordable housing.

For example, for a proposed UAP development containing a mix of uses in a R10 district, the maximum permitted FAR for standard residences, community facility and qualifying affordable housing is shown in Figure 1.

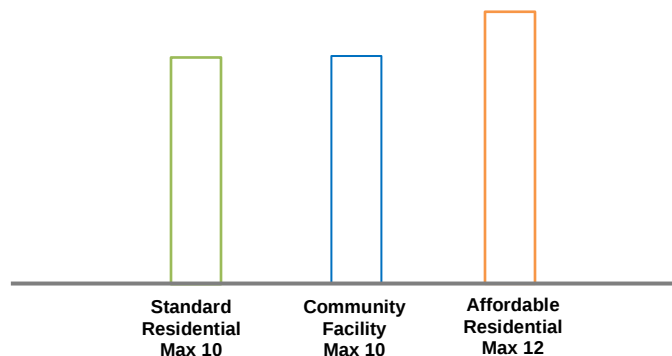


Fig 1. Maximum FARs for permitted uses in R10 District

Based on the above interpretation, the FAR exceedance beyond that for standard residences can only be for affordable housing. For example, if 0.1 FAR of UAP affordable housing is proposed, the maximum residential FAR is now 10.1, and 10.1 is also the maximum total FAR for the mixed-use building in a R10 district, as shown in Figure 2. Alternatively, if 2 FAR of UAP affordable housing is proposed, the maximum residential FAR is now 12, and 12 is also the maximum total FAR for the mixed-use building in a R10 district.

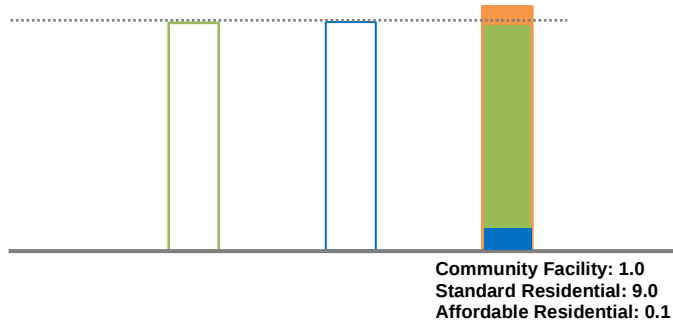


Fig 2. Example of maximum total FAR for building with Standard Residences, UAP and Community Facility in R10 District